

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #03	CCRB Case #: 201500372	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/13/2015 9:00 AM	Location of Incident: inside the 43rd Precinct stationhouse	18 Mo. SOL 7/13/2016	Precinct: 43
Date/Time CV Reported Tue, 01/20/2015 11:18 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 01/20/2015 11:18 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Austin Denio	29648	941648	043 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Robert Ramagnano	6921	935556	043 DET
2. POM Felix Delcarpio	11999	933735	043 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Austin Denio	Abuse: Det. Austin Denio threatened to arrest § 87(2)(b)	A . Exonerated
B . DT3 Austin Denio	Discourtesy: Det. Austin Denio spoke rudely to § 87(2)(b)	B . Unsubstantiated

Case Summary

On January 20, 2015, § 87(2)(b) arrived at the CCRB to file this complaint. On January 14, 2015, at approximately 9:00 a.m., § 87(2)(b) was a victim § 87(2)(b) in the Bronx. § 87(2)(b) went to the 43rd Precinct stationhouse to file a complaint and was escorted to the detectives' room on the second floor. § 87(2)(b) explained what had happened to Det. Robert Ramagnano and three more detectives. One of the officers (identified by the investigation as Det. Austin Denio; at the time of the incident his rank was Police Officer) interjected and told § 87(2)(b) he would arrest him and put him in [that] room because he was a liar (**Allegation A**). As § 87(2)(b) continued to recount what had happened to him, PO Denio called § 87(2)(b) a liar and informed him he would be arrested (**Allegation A contd.**). § 87(2)(b) asked PO Denio why he was acting that way and PO Denio replied it was because he was "full of shit" (**Allegation B**). A Hispanic officer (identified by the investigation as PO Felix Delcarpio) told § 87(2)(b) in Spanish that if he did not tell the truth, PO Denio would lock him up (**Allegation A contd.**). Then, Det. Ramagnano informed § 87(2)(b) he would go to check the video surveillance of § 87(2)(b)'s building. PO Denio informed § 87(2)(b) he would check the video surveillance as well and said that if § 87(2)(b)'s story did not align with what he saw, § 87(2)(b) would be arrested (**Allegation A contd.**). When PO Denio returned, Det. Ramagnano sat § 87(2)(b) down again and asked § 87(2)(b) to repeat his story. This time, Det. Ramagnano wrote down everything § 87(2)(b) said. PO Denio interrupted and told § 87(2)(b) to go home, and reminded § 87(2)(b) he would knock on his door to arrest him (**Allegation A contd.**). § 87(2)(b) was not arrested or summonsed as a result of this incident (complaint encl. 3a-d, CCRB statement encl. 4a-f).

Mediation, Civil and Criminal Conviction Histories

- § 87(2)(b) accepted mediation and the case was forwarded to the ADR unit on March 3, 2015. Mediation was rejected by Det. Denio and the case was returned to the undersigned on April 3, 2015.
- On April 17, 2015, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the Comptroller will be forwarded upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed CCRB § 87(2)(g).
- Det. Austin Denio has been a member of the service for 8 years and there is the first CCRB complaint against him.

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
[REDACTED]

Explanation of Subject Officer Identification

- On January 14, 2015, Det. Robert Ramagnano, Det. Austin Denio, PO Felix Delcarpio, and Det. Michael Garrity were assigned to BRAM in the 43rd Precinct detective squad (encl. 9a-c).
- § 87(2)(b) identified Det. Ramagnano by name and described him as a Caucasian male, 5'7" tall, weighing 190-200 pounds, chubby, and as over 30 years old. According to his pedigree information, Det. Ramagnano is a Caucasian male, § 87(2)(b), and was

§ 87(2)(b) at the time of the incident (encl. 5f). § 87(2)(b) also described a Hispanic male officer, 5'5" tall, weighing 190 pounds, very chubby, and in his late 20s. The investigation determined this officer to be PO Delcarpio, a Hispanic male who § 87(2)(b) was 40 years old at the time of the incident (encl. 6e).

- Based on § 87(2)(b)'s description of events, the subject officer accompanied Det. Ramagnano to his apartment building to view surveillance footage.
 - Det. Ramagnano's memo book and the movement log for January 14, 2014 indicate that at 7:05 p.m., Det. Ramagnano, Det. Denio, and Det. Garrity conducted an investigation at § 87(2)(b) (encl. 5a-b).
- § 87(2)(b) described the subject officer as a Caucasian male, is 6' tall, weighing 135-140 pounds, skinny but with a slight gut, and in his late 30s.
 - Det. Denio is a Caucasian male, § 87(2)(b), and was § 87(2)(b) at the time of the incident (encl. 7e).
 - On the other hand, Det. Garrity is a Caucasian male, § 87(2)(b), but was § 87(2)(b) at the time of the incident (encl. 9h).
- § 87(2)(g)

Recommendations

- **Allegation A – Abuse of Authority: Det. Austin Denio threatened to arrest** § 87(2)(b) § 87(2)(b) alleged Det. Austin Denio told him in numerous contexts that he could be arrested for lying and falsely reporting a crime.

While Det. Denio recalled hearing numerous inconsistencies in § 87(2)(b)'s testimony to Det. Ramagnano, he denied speaking with § 87(2)(b) at any point and denied making the alleged statement to § 87(2)(b).

Det. Robert Ramagnano explained § 87(2)(b)'s testimony had numerous inconsistencies and that § 87(2)(b) was unable to provide financial documentation to show proof of the money he alleged had been stolen. Then, Det. Ramagnano informed § 87(2)(b) that it was a crime, and an arrest-able offense to file a false report. Det. Ramagnano recalled Det. Denio intermittently speaking with § 87(2)(b) but could not recall the context of the conversation. Det. Ramagnano knew he informed § 87(2)(b) he could be arrested for falsifying an official report, but did not recall hearing Det. Denio telling § 87(2)(b) the same. Det. Ramagnano explained that VIPER's search for video surveillance, as well as a canvass he conducted for video surveillance, were negative in recording the crime § 87(2)(b) alleged. Furthermore, § 87(2)(b) had not been cooperative with Det. Ramagnano's attempts to contact him to provide the necessary financial documents to proceed with the investigation.

PO Delcarpio did not recall having interacted with § 87(2)(b) or observing him interact with other officers.

Section 240.50(3) of the NYS Criminal Procedure Law states it is a misdemeanor to report to an law enforcement agency (a) an alleged occurrence of an offense or incident which did not in fact occur (b) an allegedly impending occurrence of an offense or incident which in fact is not about to occur; or (c) false information relating to an actual offense or incident or to the alleged implication of some person therein (encl. 0).

§ 87(2)(g)

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[REDACTED] Consequently, it is recommended that **Allegation A** be closed as **exonerated**.

• **Allegation B – Discourtesy: Det. Austin Denio spoke rudely to** § 87(2)(b) § 87(2)(b) alleged Det. Austin Denio told him he was “full of shit.” Det. Denio denied speaking to § 87(2)(b) at all and denied making the alleged statement to him. Det. Robert Ramagnano denied hearing Det. Denio tell § 87(2)(b) he was “full of shit,” and PO Delcarpio did not recall Det. Denio having interacted with § 87(2)(b) at all. § 87(2)(g)

Therefore, it is recommended **Allegation B** be closed as **unsubstantiated**.

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Investigator: _____ Rebecca Ho 04/27/2015
Signature Print Date

Supervisor: _____

Title/Signature	Print	Date
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Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

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